

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1212

Introduced by Riepe, 12.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Uniform Credentialing Act; to amend
- 2 sections 38-2001 and 38-2002, Revised Statutes Cumulative
- 3 Supplement, 2024; to provide for licensure of internationally
- 4 trained physicians as prescribed; to harmonize provisions; and to
- 5 repeal the original sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 38-2001, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 38-2001 Sections 38-2001 to 38-2064 and sections 3 to 8 of this act
4 shall be known and may be cited as the Medicine and Surgery Practice Act.

5 **Sec. 2.** Section 38-2002, Revised Statutes Cumulative Supplement,
6 2024, is amended to read:

7 38-2002 For the purposes of the Medicine and Surgery Practice Act
8 and elsewhere in the Uniform Credentialing Act, unless the context
9 otherwise requires, the definitions found in sections 38-2003 to 38-2022
10 and section 3 of this act apply.

11 **Sec. 3.** For purposes of sections 3 to 8 of this act:

12 (1) Health profession shortage area means a geographic region of the
13 state, including a city, county, or other geographic area, that has been
14 designated as such by the Nebraska Rural Health Advisory Commission. In
15 making such a designation under this section, the commission shall
16 consider: (a) The number of physicians that currently practice medicine
17 in the geographic region; (b) the racial, ethnic, cultural, and language
18 needs of the geographic area; (c) the travel time it takes for residents
19 of the geographic area to access a physician; and (d) other criteria as
20 provided in 42 C.F.R. 5 as such section existed on January 1, 2026;

21 (2) Internationally trained physician means a physician who has (a)
22 received a degree of doctor of medicine or its equivalent from a legally
23 chartered medical school outside the United States (b) completed training
24 in the United States or another country with a substantially similar
25 medical training program, as determined by the board, (c) been licensed
26 or otherwise authorized to practice medicine in a country other than the
27 United States, and (d) practiced medicine for at least three of the last
28 five years in the United States or another country unless that period is
29 waived by the board;

30 (3) Legally chartered medical school outside the United States means
31 a medical school recognized by the Educational Commission for Foreign

1 Medical Graduates that provides individuals with a medical education or
2 training outside the United States that is substantially similar to the
3 training required to qualify to practice medicine and surgery in this
4 state, as determined by the board;

5 (4) Licensing examination means the United States Medical Licensing
6 Examination;

7 (5) Limited license means a license to practice medicine issued
8 pursuant to section 4 of this act;

9 (6) Participating health care entity means a federally qualified
10 health center, hospital, or other entity that provides an assessment and
11 evaluation program and is approved by the board. The board may establish
12 additional criteria for qualification as a participating health care
13 entity; and

14 (7) Restricted license means a license issued pursuant to section 5
15 of this act that permits an internationally trained physician to practice
16 as a practitioner in a health profession shortage area independently
17 without the supervision of a participating health care entity.

18 **Sec. 4.** (1) The department, with approval of the board, shall issue
19 a limited license for no longer than three years to an internationally
20 trained physician if the physician and the participating health care
21 entity submit evidence that the physician:

22 (a) Meets the definition of an internationally trained physician;

23 (b) Has a valid certification issued by the Educational Commission
24 for Foreign Medical Graduates;

25 (c) Has achieved a passing score on step 1 and step 2 of the
26 licensing examination;

27 (d) Has entered into an agreement with a participating health care
28 entity for full-time employment under the supervision of a licensed
29 physician. Such agreement shall provide that the entity shall develop,
30 assess, and evaluate the physician's familiarity with the standards
31 appropriate for medical practice in the State of Nebraska, consistent

1 with the assessment and evaluation criteria developed or approved by the
2 board;

3 (e) Has federal immigration status that allows the internationally
4 trained physician to practice as a physician in the United States; and

5 (f) Has satisfied other criteria as required by the board.

6 (2) An internationally trained physician practicing under a limited
7 license shall be allowed to renew such physician's limited license for
8 one three-year period. No such physician practicing under a limited
9 license shall be allowed to hold a limited license for more than six
10 years.

11 (3) An internationally trained physician practicing under a limited
12 license shall be supervised and employed by a participating health care
13 entity. A participating health care entity shall:

14 (a) Employ one or more supervisors to supervise internationally
15 trained physicians. A supervisor shall: (i) be licensed to practice
16 medicine in the State of Nebraska in good standing; (ii) possess all
17 necessary institutional privileges; and (iii) be certified in the same
18 specialty as the intended practice of the internationally trained
19 physician by a member board of the American Board of Medical Specialties
20 or equivalent organization as determine by the board;

21 (b) Carry medical malpractice insurance covering such physician
22 during the period of time the physician practices under the limited
23 license; and

24 (c) Complete all required assessment and evaluation criteria.

25 **Sec. 5.** (1) The department, with approval of the board, shall issue
26 a restricted license for no longer than three years to an internationally
27 trained physician if such physician has:

28 (a) Practiced medicine for three years under the supervision of a
29 participating health care entity;

30 (b) Completed and received satisfying results on the participating
31 health care entity's board-approved assessment and evaluation program;

1 (c) Received a satisfactory score on step 3 of the licensing
2 examination; and

3 (d) Completed additional prerequisites required by the board. Such
4 prerequisites shall not include a medical education residency program.

5 (2) The restricted license may be renewed for one three-year period.

6 **Sec. 6.** (1) After an internationally trained physician has
7 practiced under a limited license for a minimum of three years and a
8 restricted license for a minimum of three years, such physician shall be
9 eligible to apply for an unrestricted license to practice medicine.

10 (2) While practicing under a limited or restricted license, the
11 physician shall submit the following information to the board every six
12 months or upon request: (a) A statement certifying that the physician is
13 employed as a physician in this state and not subject to discipline; and
14 (b) a disclosure of the results of any assessment or evaluation completed
15 by the participating health care entity.

16 (3) The physician shall notify the board of any changes in
17 employment during the period of time the limited license is in effect.

18 **Sec. 7.** (1) In addition to any other grounds for disciplinary
19 action against the license under the Uniform Credentialing Act, the
20 department may take disciplinary action, including suspension and
21 revocation, against a license granted pursuant to section 4 or 5 of this
22 act for professional misconduct, noncompliance with licensure
23 requirements, or an unsatisfactory assessment or evaluation submitted by
24 a participating health care entity.

25 (2) A limited or restricted license may be suspended, pending a full
26 disciplinary review by the department, if, in the judgment of a
27 participating health care entity, the internationally trained physician's
28 practice jeopardizes the health and well-being of a patient.

29 **Sec. 8.** An internationally trained physician aggrieved by any
30 action against such physician's limited or restricted license may appeal
31 the decision. The appeal shall be in accordance with the Administrative

1 Procedure Act.

2 **Sec. 9.** Original sections 38-2001 and 38-2002, Revised Statutes
3 Cumulative Supplement, 2024, are repealed.